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From: Presidency
To: Delegations

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Subject: Draft Council conclusions on "Underpinning the European space
renaissance: orientations and future challenges"

With a view to the Space Working Party meeting on 30 October 2014, delegations will find attached a revised Presidency draft text of the Council conclusions on "Underpinning the European space renaissance: orientations and future challenges".

Changes to the previous document are indicated in **bold underlined** and ~~striketrough~~.

DRAFT COUNCIL CONCLUSIONS¹

"Underpinning the European space renaissance: orientations and future challenges"

THE COUNCIL OF THE EUROPEAN UNION

~~HAVING REGARD to~~ **RECALLING that** the Treaty on the Functioning of the European Union (TFEU)² ~~establish~~**esing** an EU competence in space, ~~in particular Articles 4 and 189;~~

HAVING REGARD to the Framework Agreement between the Union and the European Space Agency (ESA)³;

HAVING REGARD to ~~the~~ its resolutions and orientations adopted and those of the "Space Council" notably those defining the objectives and priority areas of the European Space Policy the contribution of Space to innovation and competitiveness in Europe, as well as the global challenges, taking full benefit of European space systems⁴; and WELCOMING the progress achieved by the Commission and ESA in the implementation of the European Space Policy;

HAVING REGARD to the Council Conclusions on "Towards a shared EU-ESA vision for space fostering competitiveness" of 26 May 2014⁵, in particular the preamble as well as point 12 thereof;

¹ NL/ES/DE: general scrutiny reservation

² **In particular Articles 4 and 189**

³ OJ L 261 of 6.8.2004, p. 64.

⁴ doc. 10037/07, 13569/08, 10500/09, 16864/10

⁵ doc. 10289/14

‘RECALLING the European Council Conclusions⁷ of 23 December 2013 which, while remaining committed to delivering key capabilities and addressing critical shortfalls through concrete projects by Member States, supported by the European Defence Agency (EDA), welcomed the preparations for the next generation of Governmental Satellite Communication (GOVSATCOM) through close cooperation between the Member States, the Commission and ESA; and asked for a users' group to be set up in 2014;

TAKING NOTE of the Commission’s report "A new deal for European defence - Implementation Roadmap for Communication COM (2013) 542; Towards a more competitive and efficient defence and security sector”⁸;

[ACKNOWLEDGING the outcome of the ESA Council at ministerial level, held in Luxembourg on 2nd December 2014, and in particular the resolutions on ESA evolution.]

Exploiting Union Space Programmes

1. RECOGNISES the progress made with the implementation of the European Space Policy, in particular with the entry into force of the European Satellite Navigation Systems and Programmes (European GNSS), Copernicus and Horizon 2020 programmes, the Satellite Surveillance and Tracking (SST) Support Framework and UNDERLINES that their successful implementation constitutes a priority.
2. RECALLS that the EU GNSS and Copernicus programmes are expected to create substantial European market opportunities, in particular for European industry and SMEs, through the development of value-added downstream services, ~~also relevant at global level;~~ **which require continuous and sustained access to data.** UNDERLINES that this growth should be complemented and supported by the Union through the development of best practices, standards in relevant areas, **as well as appropriate regulatory measures,** with a view to ensuring the widespread uptake of Union space programmes in as many sectorial policy areas as possible, ~~in order to~~ **thus** ~~improving~~ the quality of life for the ~~larger possible part of~~ European citizens.

⁶ ES/UK scrutiny reservation; FR reservation

⁷ EUCO 217/13

⁸ doc. 11358/14

3⁹. RECOGNISES the unique contribution of space programmes which, through their global observation capacity and long-term coverage, provide the scientific community with series of data requested for research into medium-long term weather forecast and climate change, while complementing other observation and measurement tools. ACKNOWLEDGES the significant progress made in meteorology **through the EUMETSAT-ESA cooperation in particular for the development** ~~with the preparation~~ of next generation Meteorological Satellite Observation systems and associated modeling and forecasting capacities which are expected to ensure European leadership in the global context. In this regard UNDERLINES the importance of services seamlessly integrating navigation, observation and communications space systems as well as their improved integration with ground infrastructure, to ensure monitoring and forecasting of the Earth environment including, where appropriate, now-casting, in support to the development and implementation of appropriate mitigation and adaptation measures.

Long-term vision and policy

- 4¹⁰. STRESSES that an ambitious long-term European space vision among the EU, ESA, their respective Member States and other relevant European actors should allow: responding to public policy objectives and user needs; enabling new economic growth and job creation in Europe; supporting world-class scientific progress; as well as securing the European capability to conceive, develop, launch, operate and exploit space systems.
- 5¹¹. Given the long **development** cycles **times peculiar to the** of space **sector** ~~programmes~~ and the complexity of the decision-making processes, CONSIDERS that, while consolidating ongoing space programmes, the time is ripe to start reflecting on and preparing future initiatives by the Union, **in order to further enable and foster its sectorial policies**.

⁹ CZ/MT scrutiny reservation

¹⁰ DE: scrutiny reservation.

¹¹ DE/NL: scrutiny reservation.

- 6¹². INVITES, therefore, the Commission, on the basis of the results already achieved, ~~and following~~ in collaboration with the ESA Director General (ESA DG), to review, in consultation with Member States and other relevant actors, the European Space Policy and to identify to what extent it may require to be updated, having due regard to TFEU and ESA Convention provisions. Hence, CALLS on the Commission to devise a shared long-term vision, which will meet the long-term needs of European users, particularly in EU and national policies, taking into account the orientations provided hereto and which can be used by all actors as a planning tool for major space activities in Europe.
7. INVITES the Commission to ~~finalise~~ make progress, in cooperation with ESA DG, on the ongoing assessments of the institutional relations between the EU and ESA with a view to proposing ~~an improved governance model~~ further improvements for a reliable and sustainable partnership between the EU and ESA, which would facilitate ~~further~~ implementation of the European Space Policy and its potential evolution; UNDERLINES ~~that this model should take~~ ing stock of the lessons learnt from the ongoing Union space programmes.

*Emerging priorities*¹³

7bis. RECOGNISES the significant potential for growth and jobs stemming from the exploitation of space-based technologies and systems through the development of downstream applications and URGES the Commission to take action in exploiting their potential across all space programmes.

¹² DE/NL: scrutiny reservation.

¹³ FR/DE/CZ/FI: general scrutiny reservation on this chapter

- 8¹⁴. UNDERLINES the need to continue pursuing synergies in space, security, and defence ~~related~~ activities, **where appropriate**; WELCOMES current collaboration among the Commission, the European External Action Service (EEAS), EDA and ESA to fulfill this goal and STRESSES the importance of a structured coordination in space and security, involving Member States.
- 9-¹⁵ RECOGNISES that Satellite Communications (~~SATCOM~~) is a unique capability which can ensure long-distance communications and broadcasting. Given the nature of security activities, **bearing in mind that security capabilities are owned and operated by Member States and** NOTES the growing demand ~~on the use of~~ **for** GOVSATCOM ~~among security actors~~ and therefore UNDERLINES the importance of investigating on potential forms of collaboration with Member States, ~~with the~~ **foreseeable** intent, ~~in line with the Pooling and Sharing concept,~~ to resort ~~or access to~~ their GOVSATCOM assets to fulfil EU operational requirements.
- 10-¹⁶ WELCOMES the initiatives of the Commission, **EEAS** and ~~the~~ EDA **to identify user requirements regarding governmental satellite communications** ~~to support security actors on the use of GOVSATCOM;~~ ¹⁷ WELCOMES the setting up of a users' group, bringing together **INVITES them** ~~Commission services, EEAS, EDA and ESA in order to develop~~ **report by early 2015 on their findings; UNDERLINES the need for** a coherent framework to avoid fragmentation of demand **and maximise civil-military synergies;** ~~and to prepare the next generation of Governmental Satellite Communication; accordingly, taking note of the defence user requirements adopted in the EDA framework and of the security user requirements consolidated by the Commission,~~ CALLS ~~on the Commission,~~ in cooperation with EDA ~~to prepare a high level civil-military user requirements document for~~ **for the preparation of** the next generation of GOVSATCOM **Governmental Satellite Communication** ~~should be endorsed by~~ **through cooperation among** Member States, **EDA, the Commission and ESA, which** ~~and could form the basis for a preparatory action in view of a future dedicated Union initiative.~~

¹⁴ DK/NL/UK/PT/FR: scrutiny reservation

¹⁵ DK/NL/UK/PT/IE/ES/BE/FR: scrutiny reservation.

¹⁶ DK/EL/FR/UK/PT/IE/BE/ES/NL: scrutiny reservation.

¹⁷ DE: reservation

~~14~~**10**¹⁸. ~~NOTES~~ **WELCOMES the Commission's objective to integrate** ~~that the~~ Remotely Piloted Aircraft Systems (RPAS) **gradually into civilian Union airspace and** ~~NOTES that these~~ developments represents a potential opportunity to foster job creation and a source for innovation, technological independence and economic growth; INVITES **Member States and other relevant European actors** to pursue the progressive integration of Space and Aerospace services and technologies to the use of RPAS in a safe and sustainable manner ~~within civilian airspace.~~

10bis. STRESSES the importance of promoting the growth of the European small satellites industry, while recognising their potential to allow rapid and affordable access to space, in particular with regard to testing or validating new concepts and technologies in orbit.

~~12~~**11**¹⁹. WELCOMES the Decision establishing SST support framework²⁰ which sets the foundations for the protection of Union space systems and REAFFIRMS the need for securing an appropriate level of European autonomy in SST activities based on Member States assets and resources and taking into account the European added value.

~~13~~**12**²¹. UNDERLINES the strategic importance of independent, reliable and cost effective access to space at affordable conditions for the EU, ESA and their respective Member States, based on the availability of European competitive world-class launch systems and operational capacities, including the European spaceport and other relevant facilities both within and outside Europe, and the technologies which are critical to their development and production.

~~14~~**13**. EMPHASISES equally the importance of research and innovation for the competitiveness of industry and the need for a consolidated approach for the development of critical **technologies** ~~components~~, for which dependency of European industry on international suppliers should be limited, **at cost-effective and affordable conditions** in order to achieve the optimal balance between technological independence, strategic cooperation with international partners and reliance on market forces.

¹⁸ DK/EL/FR/UK/NL: scrutiny reservation.

¹⁹ DK/NL: scrutiny reservation.

²⁰ OJ L 158 of 27.05.2014, p. 227.

²¹ NL: scrutiny reservation

~~15~~**14.** INVITES the Commission to examine the political and industrial context for space taking stock of the experience gained in the Union space programmes [and the outcome of the ESA Council meeting at ministerial level on 2 December 2014]; to explore **with Member States** ~~the~~ possibilities, ~~inter alia through a resource pooling scheme,~~ for sustainable institutional markets for critical technologies and critical systems, ~~in particular~~ **including** launchers; and to present an action plan, taking into account security aspects both at European and global scale, and considering the use of innovative procurement approaches, thus underpinning European capacity building and non-dependence.

~~16~~**15**²². UNDERLINES that Horizon 2020 should support ~~development of technology in the framework of the aforementioned strategic priorities, taking into account related activities conducted by Member States and ESA and, where appropriate, dual use benefits~~ **and, since space research has long timescales necessitating a clear roadmap for investment decisions, CALLS on the Commission, ESA and Members States to coordinate roadmaps for future research and innovation activities.**

Space exploration and science

~~17~~**16.** WELCOMES the coordination mechanism for space exploration through the International Space Exploration Conference as ~~the right~~ **an appropriate** way forward ~~for space exploration activities;~~ RECALLS that space exploration is a political endeavour and a grand challenge; UNDERLINES its value for inspiring young Europeans to choose a career in science and technology, as well as the need for developing a long-term strategy taking into account the global coordination of the major powers' plans for human and robotic exploration as well as associated effort, capacities and priorities.

~~18~~**17.** STRESSES the goal of maintaining a leading space science capacity, keeping the pioneering momentum, which can ensure that Europe remains at the forefront of new discoveries and challenging projects, as well as achieving a better understanding of fundamental questions regarding the Universe, our Solar System, the planet Earth and its environment; RECOGNISES the importance of research in space which, coupled to terrestrial research

²² NL/ES: reservation

programmes, allows finding solutions to health problems and ~~can drive~~**ing** the identification of new ideas and opportunities for the future thus enabling the fruitful development of the technologies and infrastructures to serve Europe.

Next steps

~~19~~**18**²³.INVITES the Commission to report to the Council and the European Parliament, by 2016, on the progress made with regard to these conclusions with a view to providing an input for the mid-term review of the current Multiannual Financial Framework for all space-related aspects through a comprehensive, collaborative and forward-looking approach.

²³ COM: reservation